

Motion to Quash and/or Modify Defendant's Subpoenas GRANTED.

Request for Sanctions GRANTED.

Sanctions awarded in the amount of \$2,975 (\$850 x 3.5 hours) to be paid to Plaintiff's attorney within 30 days.

Trial Setting Conference confirmed for February 25, 2027.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2507287	MANAVIE VS EXEL INC.	MOTION FOR PREFERENTIAL TRIAL SETTING BY ARLETA L. MANAVIE, MICHAEL A. MANAVIE

Tentative Ruling: C.C.P. § 372(a)(1) provides that a person who lacks legal capacity to make decisions shall appear either by a GAL appointed by the court in which the action is pending. On July 22, 2026, Plaintiffs obtained appointment of a GAL for Arleta on representations that she lacks the capacity to adequately understand these proceedings and protect her interests. Defendants argue the motion is procedurally improper since it is brought by Arleta, not by her GAL.

Defendants are correct that § 372(a)(1) uses mandatory language, the incapacitated party *shall* appear through her GAL. A motion caption reading Plaintiff Arleta L. Manavie's Notice of Motion rather than Michael A. Manavie, as Guardian ad Litem for Arleta L. Manavie, moves... is a form irregularity that the statute's text supports objecting to. But Defendants cite no authority which treats such a caption defect as jurisdictional or as grounds to deny relief on the merits when the GAL is on the record, counsel of record represents both plaintiffs, and the GAL supports the motion.

C.C.P. § 36(a) provides that a party who is over 70 years of age may petition the court for preference, "which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (C.C.P. § 36(a)(1)-(2).) Code of Civil Procedure section 36(c)(1) requires that a party filing a motion for preference support it with "a declaration of the moving party that all essential parties have been served with process or have appeared." Moreover, C.C.P. § 36(d) provides that the court may, in its discretion, grant a motion for preference "accompanied by clear and convincing medical documentation that concludes that one of the parties suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months, and that satisfies the court that the interests of justice will be served by granting the preference."

Where a party meets the requisite standard for calendar preference based on the party's health and status as more than 70 years of age, preference must be granted; the court cannot balance conflicting interests. (*Fox v. Sup. Ct.* (2018) 21 Cal.App.5th 529.) Notably, the requisite showing under § 36(a) may be made through an attorney affidavit "based upon information and belief as to the medical diagnosis and prognosis." (C.C.P. § 36.5; see also *Fox, supra*, 21 Cal.App.5th at 534 [no doctor's declaration is required

under the standard of subdivision (a)].) Trial must be set within 120 days even if opposing parties have not completed discovery or pretrial preparations. (C.C.P. § 36(f); *Swaithe v. Sup. Ct.* (1989) 212 Cal.App.3d 1082, 1086.)

Threshold Procedural Requirement Under Section 36(c)(1):

Defendants again contend the motion must be denied because an essential party, Hillebrand Last Mile USA, Inc., the entity allegedly involved in the incident, has not been named, served, or appeared. As with the initial motion, Plaintiff demonstrates that Defendant Hillebrand Gori USA, LLC filed an answer to the complaint on April 8, 2026, through counsel David A. Shimkin of Cozen O'Connor [not opposing defense counsel], and that Defendant Hillebrand Gori USA, LLC has not asserted in its filed answer that the incorrect entity was named. Plaintiff further shows that all named defendants have appeared and filed answers: Defendant Penske Leasing and Rental Company and Defendant Efrain Williams Rivas Sanchez filed answers on March 27, 2026; Defendant Hillebrand Gori USA, LLC filed an answer on April 8, 2026; and Defendant Exel, Inc. filed an answer on April 16, 2026. Again, the record before the Court demonstrates that all named defendants have filed answers.

C.C.P. § 36(a) – Mandatory Preference:

Under section 36(a), the preference is mandatory if Plaintiff is over 70 years old, has a substantial interest in the action and health necessitating preference to prevent prejudice.

There is no dispute that Plaintiff is 85 years old. There is also no dispute that she is an injured party seeking damages which constitutes a substantial interest in the action as a whole.

Rather, the parties dispute whether Plaintiff's health necessitates preference. Unlike the prior motion's vague references, the renewed motion provides concrete functional limitations affecting Plaintiff's ability to participate in litigation, specifically that she has been diagnosed with dementia and continues to deal with increased difficulty and has suffered a decrease of her legal capacity, including but not limited to difficulty with following single-step instructions, managing her medications, managing her finances, difficulty remembering names/locations, and has begun to eat less and less throughout the day. (Liu Decl., ¶ 3.) On April 29, 2026, Plaintiff Arleta underwent a T5-T6 kyphoplasty spinal procedure and T8-T9 posterior thoracic laminectomy to address her ongoing back pain and thoracic myelopathy from stenosis. (*Id.* at 9.) Moreover, on July 22, 2026, this Court entered a GAL order finding that Plaintiff lacks capacity. (*Id.* at 10.) This is sufficient to show her health necessitates preference.

Defendant's arguments regarding prejudice due to counsel's impending maternity leave and the need to complete discovery are not pertinent to the instant motion. Where a party meets the standard, "preference must be granted. No weighing of interests is involved." (*Fox, supra*, 21 Cal.App.5th. at 535.)

Motion for Preferential and Early Trial Setting GRANTED.

Mandatory Settlement Conference set for October 9, 2026 at 3:00 p.m.

Jury Trial set for October 23, 2026.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2509919	SEARGEANT VS AIRBNB, INC., A DELAWARE CORPORATION	MOTION TO COMPEL ARBITRATION BY AIRBNB, INC., A DELAWARE CORPORATION

Tentative Ruling: The court must grant the petition to compel arbitration unless it finds either: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement, or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (Code Civ. Proc., § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The petition to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (Cal. Rules of Court, rule 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-219.) This rule does not require the petitioner to authenticate the agreement or do anything more than allege its existence and attach a copy. (*Condee, supra*, 88 Cal.App.4th at 218-219.) Once this is done, the burden shifts to the opposing party to demonstrate the falsity of the purported agreement. (*Id.*)

Forum & Delegation:

As a threshold matter, Airbnb argues this Court is not an authorized forum under the applicable Terms of Service that Annabel contractually agreed to. Airbnb also argues that the delegation clause applies such that the arbitrator should decide if the arbitration agreement is applicable. However, when a plaintiff challenges mutual assent, as is the case here, the Court must first determine whether there is an arbitration agreement. (See *Fleming v. Oliphant Financial, LLC* (2023) 88 Cal.App.5th 13, 202-21 [issues of formation may not be delegated to an arbitrator].)

Federal Arbitration Act:

Defendant asserts the FAA applies. Plaintiff does not dispute this. The Agreement states, “This Arbitration Agreement evidences a transaction in interstate commerce and the Federal Arbitration Act governs all substantive and procedural interpretation and enforcement of this provision.” (Agreement, § 24.6.) As the Agreement provides for the FAA to govern, then it governs. (*Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.App.4th 376, 394; *Aviation Data, Inc. v. American Express Travel Related Services Company, Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535.)